October 30, 2025

Consulate General of Canada
in Sao Paulo
Centro Empresarial Nações Unidas
Av. das Nações Unidas, 12901
Brooklin Paulista, São Paulo - SP
04578-000, Brazil

Dear Sir or Madam,

Re: Reconsideration request for the refusal of the Start-Up work Visa
Mrs. Priscila Luz e Calil

I am writing on behalf of Ms. Priscila Luz e Calil, an essential co-founder and Chief Operating Officer of Bringfy Technologies Inc., to respectfully request reconsideration of the refusal of her 3-year open work permit under the Start-Up Visa Class.

The refusal, dated October 21, 2025 stated that the business plan did not demonstrate sufficient understanding of the Canadian market, failed to address competition, and lacked a concrete establishment plan in Canada, among other concerns.

This decision, however, was made without full consideration of the evidence and in breach of procedural fairness.

Bringfy is an innovative logistics technology company that connects small and mid-sized local businesses with on-demand couriers through a data-driven last-mile delivery platform. The company received a Commitment Certificate and Letter of Support from Brilliant Catalyst, a designated business incubator authorized by IRCC under the Start-Up Visa program.

Brilliant Catalyst's endorsement confirms that the incubator, an entity specifically vetted and empowered by IRCC, evaluated and approved the business model, market potential, and innovation criteria before issuing the commitment.

Under section 98.01 of the Immigration and Refugee Protection Regulations (IRPR), the designated organization's role is to assess the business proposal's merit, competitiveness, and potential benefit to Canada. Thus, when a designated incubator issues a commitment letter, it confirms that these criteria have been met.

Brilliant Catalyst's role under the Start-Up Visa program is to vet, evaluate, and mentor start-ups with credible innovation and Canadian potential. It is not plausible nor consistent with IRCC's framework that an authorized incubator, whose mandate is to support only qualified and innovative ventures, would issue a Commitment Certificate to a start-up that "failed to address competition" or "lacked a concrete establishment plan."

The incubator's assessment already encompasses these criteria. Their endorsement serves as the central evidence of innovation and viability under the SUV program. The officer's refusal therefore appears to substitute the incubator's specialized business judgment with an immigration officer's subjective interpretation, contrary to the design of the Start-Up Visa framework.

The refusal also was issued without procedural fairness.

Given that the concerns raised related to business viability and market detail, which are outside the technical expertise of immigration officers, procedural fairness required the officer to seek clarification or request additional documentation rather than refuse outright.

No such opportunity was provided to Ms. Luz e Calil. Had she been contacted, she could have immediately submitted supplementary market data, partnership evidence, and detailed establishment milestones addressing each concern.

The Supreme Court of Canada in Baker v. Canada (Minister of Citizenship and Immigration), [1999] 2 S.C.R. 817 affirmed that applicants must be given a fair opportunity to respond to adverse findings central to a decision. The lack of such opportunity constitutes a breach of natural justice and undermines the fairness of this refusal.

In light of the evidence, we respectfully request that IRCC reconsider and reopen Ms. Luz e Calil's application.

The officer's concerns fall within the incubator's mandate and have already been assessed by them.

The procedural fairness principles were not observed, as the applicant was denied an opportunity to clarify or provide additional context.

Reconsidering the request would allow IRCC to align its decision-making with the intent of the Start-Up Visa program and ensure procedural fairness in the assessment process.

Should you have any concerns or require additional information/documentation in order to consider this request, please do not hesitate to contact me.

Sincerely,

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Olga Picalau, RCIC R509776
Immigration Consultant